

**THE COMMONWEALTH OF MASSACHUSETTS
TOWN OF WESTHAMPTON
ANNUAL TOWN MEETING WARRANT**

HAMPSHIRE SS.

To either of the Constables of the Town of Westhampton in the County of Hampshire

GREETINGS

IN THE NAME OF The Commonwealth of Massachusetts, you are hereby directed to notify and warn the inhabitants of said Town, qualified to vote in elections and in Town affairs, to meet at the TOWN HALL, 1 SOUTH ROAD in said WESTHAMPTON on SATURDAY the TENTH day of MAY, TWO THOUSAND TWENTY FIVE at 9:00 o'clock in the morning, and there to act on the following articles:

ARTICLE 1: To hear and act on all reports presented at said meeting.

ARTICLE 2: To see if the Town will vote to amend the Bylaws of the Town of Westhampton by adding a section requiring that street Corner Clearances be maintained to improve vehicle and pedestrian visibility at street corners.

ARTICLE 3: To see if the Town will vote to improve enforcement of the General and Zoning Bylaw of the Town of Westhampton, by enacting non-criminal disposition of violations as permitted under Chapter 40 Section 21D of the Massachusetts General Laws or any other applicable statute.

ARTICLE 4: To see if the Town of Westhampton will vote to amend the Westhampton Bylaws to allow the town to enact penalties for the keeping of unregistered and dilapidated motor vehicles, or take any other action relative thereto.

ARTICLE 5: To see if the Town of Westhampton will vote to amend the Westhampton Bylaws to provide for regulation of non-recurring public events, or take any other action relative thereto.

ARTICLE 6: To see if the Town will vote to accept the provisions of M.G.L. c. 64G, section 3A, and impose a **local excise tax** upon the **transfer of occupancy** of any room or rooms in a bed and breakfast establishment, hotel, lodging house, short term rental, or motel located within the Town at a **rate of six per cent (6%)**, said excise tax to take effect on the first day of the calendar quarter commencing at least thirty days after such vote of the Town Meeting.

ARTICLE 7: To see if the town will vote to amend the Zoning Bylaw of the Town of Westhampton to **allow for Accessory Dwelling Units that meet certain criteria on any single-family lot by right**, and to allow for Accessory Dwelling Units that do not meet said criteria by special permit from the Planning Board or take any other action relative thereto.

ARTICLE 8: To see if the town will vote to amend the Zoning Bylaw of the Town of Westhampton by adding a new section 6.2.9 – “Superseding Authority” as follows: **Notwithstanding any other section of this Zoning Bylaw, where proposed development on any lot requires a Special Permit under this Zoning Bylaw from more than one Special Permit Granting Authority, the Planning Board shall be the Special Permit Granting Authority for all proposed development on the lot.**

ARTICLE 9: To see if the Town will vote to **amend the Westhampton Bylaws to establish a standing Recreation Committee**, or take any other action relative thereto.

ARTICLE 10: To see if the Town will vote **to establish a revolving fund for the support of recreational activities in the Town of Westhampton, or take any other action relative thereto.**

ARTICLE 11: To see if the Town will vote to **authorize the Selectboard to apply for any state or federal grants** and to accept, approve and expend such grants.

ARTICLE 12: To see if the town will vote to reauthorize the several revolving funds, established with specific purposes, set sources of funds, and maximum amounts, or take any other action relative thereto.

- ARTICLE 13: To see if the Town will vote to **set the salaries of elected officials for the 2025 Fiscal Year**, and to raise and appropriate or otherwise provide a sum of money for **Salaries and Compensation**, or take any other action relative thereto.
- ARTICLE 14: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **General Government** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 15: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Fire, Police, EMS and Ambulance Services** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 16: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Building Inspections and Other Public Safety Services** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 17: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to the **Westhampton Elementary School** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 18: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Hampshire Regional School** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 19: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Vocational School Tuition** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 20: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Vocational School Transportation** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 21: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Road and Highway Maintenance and Facilities** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 22: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for **Snow Removal** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 23: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for the **Operation of the Transfer Station and Maintenance of the Westhampton Landfill** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 24: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to the **Operation and Maintenance of the Westhampton Cemetery** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 25: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Public Health** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 26: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to the **Westhampton Council on Aging** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 27: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Veterans Benefits and Services** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 28: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to the **Westhampton Public Library** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 29: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Culture and Recreation Activities** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 30: To see if the Town will vote to raise and appropriate or otherwise provide a sum of money for charges relative to **Employment Benefits, Insurance and other Mandated Expenses** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 31: To see if the Town will vote to appropriate, borrow, or transfer from available funds a sum of money for **the purchase of a New Police Vehicle** for use by the Westhampton Police Department, or take any other action relative thereto.

ARTICLE 32: To see if the Town will vote to appropriate, borrow, or transfer from available funds a sum of money for the purchase of **Town Hall Security Upgrades**, consisting of the design, permitting and installation of security cameras and access control hardware, and including all other incidental and related expenses, or take any other action relative thereto.

ARTICLE 33: To see if the Town will vote to raise and appropriate, borrow, or transfer from available funds a sum of money for the purchase of supplies and materials necessary for **painting the Public Library**, or take any other action relative thereto.

ARTICLE 34: To see if the Town will vote to **rescind authorization for authorized but unissued debt**, or take any other action relative thereto.

ARTICLE 35: To see if the Town will vote to appropriate, borrow, or transfer from available funds a sum of money **for the purchase of a solar photovoltaic energy generation system to be constructed at the Westhampton Public Safety Complex**, including design and engineering services, permitting, installation, interconnection services, any other necessary equipment or services, and all other incidental and related expenses, or take any other action relative thereto.

ARTICLE 36: To see if the Town will vote **to borrow, or transfer from available funds the sum of \$1,000,000 for the purpose of acquiring**, by purchase, gift, eminent domain or otherwise, for the purposes below, **two parcels of land, containing a total of 235 acres, more or less, located at Tob Road, Westhampton**, being Assessor's Parcel # ~~018-0-0003-0061-0~~ and Assessor's Parcel # 018-0-0003-0061-0; and further, to meet this appropriation, to authorize the Treasurer, with the approval of the Selectboard, to borrow, in accordance with Chapter 44, the sum of \$1,000,000, provided however, that such funds shall not be expended unless the Town is approved for a Landscape Partnership Grant as described below, from the Massachusetts Division of Conservation Services, and/or any other such sources, for reimbursement of all or a percentage of the project cost; and further, **to authorize the Selectboard to acquire said property on behalf of the Town for conservation and passive recreation purposes** subject to the protections of Article 97 of the Amendments to the Massachusetts Constitution; and that said property shall be under the care, custody and control of the Conservation Commission pursuant to the provisions of Chapter 40, Section 8C, as it may hereafter be amended, and other Massachusetts statutes relating to conservation; and further, **to authorize the Selectboard and/or the Conservation Commission to apply for, accept and expend any funds** that may be provided by the Commonwealth or other public or private sources to defray all or a portion of the costs of said acquisition, including, but not limited to, grants and/or reimbursement from the Commonwealth under the Landscape Partnership Grant Program (Massachusetts General Laws Chapter 132A, Section 11) and/or any grants or reimbursement programs in any way connected with the scope of this Article, which grants and/or funds so received shall be used to repay all or a portion of the sums appropriated hereunder; and further **to authorize the Select Board and/or the Conservation Commission to grant a perpetual conservation restriction(s)** to Kestrel Land Trust, or such other non-profit corporation or trust pursuant to the provisions of Chapter 184, Sections 31 through 33, protecting the properties for the purposes for which they were acquired, and, further to authorize the Selectboard and/or the Conservation Commission to enter into all agreements and execute any and all instruments as may be necessary or convenient to carry out the foregoing purposes.

ARTICLE 37: To see if the Town will vote to appropriate, borrow or transfer from available funds a sum of money for the **Town of Westhampton 250th Celebration, to be held in 2028**, in accordance with Section 53I of Chapter 44 of the General Laws, or take any other action relative thereto.

ARTICLE 38: To see if the Town will vote to transfer from Free Cash, or other available funds, a sum of money to the **General Stabilization Fund**, or take any action relative thereto.

ARTICLE 39: To see if the Town will vote to transfer from Free Cash, or other available funds, a sum of money to **Balance the Budget and to Reduce the Tax Rate** for the Fiscal Year 2025, or take any other action relative thereto.

HEREOF FAIL NOT, and make due return of this Warrant, with your doings thereon, to the Town Clerk, at the time and place of meeting, as aforesaid.

Given under our hands this 25th day of April, 2025.

Susan Bronson Selectboard of Westhampton
Lil King

A true copy, ATTEST: Robert E. Miller Constable of Westhampton

HAMPSHIRE, ss.

PURSUANT TO THE WITHIN WARRANT, I have notified and warned the inhabitants of the Town of Westhampton by posting up attested copies of the same at the Town Hall, Town Clerk's Office, Westhampton Public Library and Outlook Farm, at least seven days before the date of the meeting, as within directed.

Return of Service: Robert E. Miller 4/25/25
Constable Date